

SOLVED PRACTICE WORKBOOK

High Court and Subordinate Courts - Learner-v2 Refreshed

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing



Original deterministic study visual; labels are explanatory, not textual quotations.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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High Court and Subordinate Courts - Complete Uncompressed Learning Session

BASIC MCQS / REMEDIATION

Original MCQ loop - balanced deterministic non-patterned placement

OM1. Number of High Courts

India currently has:

A. 25 High Courts, some common to multiple States/UTs. B. 28 High Courts. C. one High Court for every State and UT. D. one High Court for each judicial district.

Answer: A.

Explanation: [CURRENT] Article 231 permits common High Courts.

OM2. Court of record

Which Article makes every High Court a court of record?

A. 226. B. 216. C. 215. D. 214.

Answer: C.

Explanation: [FACT] Article 215 includes contempt power.

OM3. Appointment

High Court judges are formally appointed by:

A. Governor. B. CJI. C. President. D. Chief Minister.

Answer: C.

Explanation: [FACT] Article 217 provides presidential appointment.

OM4. Qualification

Which is not a High Court qualification route?

A. Distinguished jurist. B. Ten years as High Court advocate. C. Indian citizenship. D. Ten years in judicial office.

Answer: A.

Explanation: [FACT] The distinguished-jurist route belongs to Supreme Court eligibility.

OM5. Retirement

A High Court judge ordinarily retires at:

A. 60. B. 62. C. 65. D. 68.

Answer: B.

Explanation: [FACT] Supreme Court retirement is 65.

OM6. Oath

High Court judge oath is before:

A. President only. B. Governor or authorised person. C. State Speaker. D. CJI.

Answer: B.

Explanation: [FACT] Article 219 controls.

OM7. Transfer

Article 222 transfer is made by:

A. Parliament. B. Supreme Court registry. C. Governor without consultation. D. President after consultation with CJI.

Answer: D.

Explanation: [FACT] Collegium doctrine structures the consultation.

OM8. Acting Chief Justice

The relevant provision is:

A. Article 225. B. Article 224A. C. Article 231. D. Article 223.

Answer: D.

Explanation: [FACT] Article 223 covers Acting Chief Justice.

OM9. Writ scope

Article 226 permits writs for:

A. Fundamental Rights and other legal purposes. B. criminal appeals only. C. Union disputes only. D. Fundamental Rights only.

Answer: A.

Explanation: [FACT] This makes Article 226 wider in purpose than Article 32.

OM10. Territorial cause of action

Article 226 jurisdiction may arise where:

A. respondent is anywhere regardless of dispute. B. cause of action arises wholly or partly within territory. C. Supreme Court grants permission. D. petitioner is an Indian citizen only.

Answer: B.

Explanation: [FACT] Article 226(2) controls.

OM11. Detention

The writ testing unlawful detention is:

A. certiorari. B. habeas corpus. C. quo warranto. D. mandamus.

Answer: B.

Explanation: [FACT] It may run against public or private detention.

OM12. Public office

The writ challenging unlawful occupation of public office is:

A. habeas corpus. B. prohibition. C. quo warranto. D. mandamus.

Answer: C.

Explanation: [FACT] It tests authority to hold public office.

OM13. Mandamus

Mandamus ordinarily:

A. commands performance of a public/legal duty. B. quashes a completed order. C. stops illegal detention. D. transfers a judge.

Answer: A.

Explanation: [FACT] A legal duty must exist.

OM14. Prohibition

Prohibition generally:

A. awards compensation. B. removes a public officer. C. stops a lower forum before completion for jurisdictional error. D. reviews a completed conviction on merits.

Answer: C.

Explanation: [FACT] Certiorari ordinarily quashes after the order.

OM15. Certiorari

Certiorari commonly:

A. commands legislation. B. appoints a tribunal. C. releases every prisoner. D. quashes a jurisdictionally defective completed order.

Answer: D.

Explanation: [FACT] It is corrective rather than preventive.

OM16. Alternative remedy

The alternative-remedy rule is:

A. a discretionary rule with recognised exceptions. B. applicable even to every jurisdictional nullity. C. an absolute constitutional bar. D. a repeal of Article 226.

Answer: A.

Explanation: [FACT] Rights, natural justice and jurisdictional failures may justify direct writ relief.

OM17. Basic Structure

Which case protects High Court review of tribunals?

A. *Kesavananda* alone. B. *Kihoto Hollohan*. C. *S.R. Bommai*. D. *L. Chandra Kumar*.

Answer: D.

Explanation: [FACT] Articles 226/227 review cannot be excluded.

OM18. Superintendence

Article 227 concerns:

A. presidential election. B. State finance. C. judicial appointments only. D. High Court superintendence over territorial courts and tribunals.

Answer: D.

Explanation: [FACT] Armed-Forces-law forums are excluded.

OM19. Constitutional withdrawal

Article 228 permits withdrawal where a case involves:

A. any factual dispute. B. a substantial constitutional-interpretation question. C. a minor procedural error. D. a political disagreement.

Answer: B.

Explanation: [FACT] High Court may decide the question or whole case.

OM20. Common High Court

Common High Courts are authorised by:

A. Article 235. B. Article 226. C. Article 214 alone. D. Article 231.

Answer: D.

Explanation: [FACT] Article 231 accommodates multi-jurisdiction courts.

OM21. District judge appointment

District judges are appointed by:

A. President. B. Governor in consultation with High Court. C. High Court alone. D. State PSC alone.

Answer: B.

Explanation: [FACT] Article 233.

OM22. Lower judicial service

Article 234 requires consultation with:

A. Election Commission and CJI. B. State PSC and High Court. C. Finance Commission and Governor. D. UPSC and Parliament.

Answer: B.

Explanation: [FACT] Governor appoints under the consultation-based rules.

OM23. Control

Control over district and subordinate courts is vested in:

A. Supreme Court registry. B. State Cabinet. C. High Court. D. Governor personally.

Answer: C.

Explanation: [FACT] Article 235 protects independence.

OM24. District and Sessions Judge

Which is accurate?

A. The same officer is District Judge on civil side and Sessions Judge on criminal side. B. District Judge handles only constitutional writs. C. Sessions Judge is below Magistrate. D. They are always different offices.

Answer: A.

Explanation: [FACT] Functional designation changes with jurisdiction.

OM25. Death sentence

A Sessions Court death sentence:

A. requires High Court confirmation. B. is confirmed by Governor alone. C. becomes final immediately. D. requires Assembly approval.

Answer: A.

Explanation: [FACT] High Court confirmation is mandatory.

OM26. Legal aid

Article 39A concerns:

A. contempt. B. judicial transfer. C. equal justice and free legal aid. D. High Court retirement.

Answer: C.

Explanation: [FACT] The Legal Services Authorities Act implements the framework.

OM27. Ordinary Lok Adalat

If settlement fails, an ordinary Lok Adalat:

A. does not adjudicate the contested merits. B. convicts the accused. C. transfers the judge. D. imposes arbitration.

Answer: A.

Explanation: [FACT] Its core mode is consensual settlement.

OM28. Criminal scope

Lok Adalat may settle:

A. no civil dispute. B. every criminal offence. C. compoundable criminal matters. D. non-compoundable offences.

Answer: C.

Explanation: [FACT] Non-compoundable offences are excluded.

OM29. AIJS route

AIJS creation requires first:

A. State PSC resolution. B. Supreme Court ordinance. C. Rajya Sabha resolution under Article 312. D. Governor conference only.

Answer: C.

Explanation: [FACT] The resolution needs at least two-thirds present and voting.

OM30. AIJS floor

Article 312(3) means AIJS cannot include:

A. reserved categories. B. district judges. C. judicial training. D. posts below district judge.

Answer: D.

Explanation: [FACT] This is an express constitutional limit.

OM31. AIJS status

As of 18 August 2026:

A. AIJS has replaced State services. B. no AIJS is operational. C. Article 235 is repealed. D. UPSC recruits every civil judge.

Answer: B.

Explanation: [CURRENT] Recruitment remains under State constitutional structures.

OM32. eCourts Phase III

Its period and approved outlay are:

A. 2023-2027, Rs 7,210 crore. B. 2026-2030, Rs 50,000 crore. C. permanent, no approved scheme. D. 2020-2025, Rs 1,000 crore.

Answer: A.

Explanation: [CURRENT] Phase III focuses on digitised and paperless justice systems.

OM33. Digital justice

Which is a sound qualification?

A. case data should determine merits. B. e-filing cannot replace judges, staff and procedural fairness. C. virtual hearings remove digital exclusion. D. technology automatically eliminates pendency.

Answer: B.

Explanation: [ANALYSIS] Technology is an enabler, not adjudication itself.

OM34. Vacancy data

High Court vacancy numbers should be:

A. inferred from case count. B. memorised permanently. C. treated as constitutional text. D. cited from a dated official source.

Answer: D.

Explanation: [CURRENT/LIMIT] Working and sanctioned strength change.

OM35. NJAC

As of August 2026:

A. judges are elected. B. NJAC appoints High Court judges. C. collegium remains operative; NJAC is not in force. D. Governors appoint through State commissions.

Answer: C.

Explanation: [CURRENT] The 2015 decision invalidated the NJAC framework.

OM36. High Court role

The best description is:

A. only State executive adviser. B. only an appellate criminal court. C. tribunal without constitutional status. D. constitutional rights court, appellate court, supervisor and district-judiciary controller.

Answer: D.

Explanation: [ANALYSIS] Articles 215, 226-228 and 235 create the combined role.

Remedial MCQs - strict B -> B -> C -> D rotation

R1. Age trap

High Court retirement age:

A. 62. B. 60. C. no retirement. D. 65.

Answer: A.

Remedy: HC 62; SC 65.

R2. Oath trap

Oath is before:

A. Lok Sabha Speaker. B. Chief Minister. C. President only. D. Governor or authorised person.

Answer: D.

Remedy: Appointment by President, oath before Governor.

R3. Writ trap

Wider in purpose:

A. Article 136. B. Article 226. C. Article 227. D. Article 32.

Answer: B.

Remedy: Article 226 covers FRs plus other legal purposes.

R4. Prohibition-certiorari trap

The completed order is ordinarily quashed by:

A. habeas corpus. B. prohibition. C. certiorari. D. mandamus.

Answer: C.

Remedy: Prohibition prevents; certiorari corrects after order.

R5. Common-HC trap

The Constitution permits:

A. one High Court for multiple States/UTs. B. no UT jurisdiction. C. one High Court per district only. D. only 28 High Courts.

Answer: A.

Remedy: Article 231.

R6. District appointment trap

District judges:

A. are elected. B. are appointed by High Court alone. C. are appointed by SPSC alone. D. are appointed by Governor in consultation with High Court.

Answer: D.

Remedy: Article 233.

R7. Control trap

Posting and promotion control belongs to:

A. Governor personally. B. High Court. C. Parliament. D. State Cabinet.

Answer: B.

Remedy: Article 235.

R8. AIJS trap

AIJS:

A. already recruits all judges. B. includes every magistrate automatically. C. is not operational and cannot include posts below district judge. D. needs only an executive order.

Answer: C.

Remedy: Articles 312 and 312(3).

R9. Court-of-record trap

Article 215 includes:

A. AIJS. B. writ territorial extension. C. contempt power. D. district appointment.

Answer: C.

Remedy: Court of record and contempt.

R10. Article 227 trap

Article 227 is:

A. superintendence over courts/tribunals except Armed-Forces-law forums. B. judicial removal. C. only an appeal. D. a Fundamental Right.

Answer: A.

Remedy: Supervision is not routine factual reappraisal.

R11. Lok Adalat trap

Ordinary Lok Adalat may settle:

A. every criminal prosecution. B. constitutional removal proceedings. C. non-compoundable offences. D. compoundable criminal and civil disputes by settlement.

Answer: D.

Remedy: Consent and compoundability control.

R12. Technology trap

eCourts Phase III:

A. abolishes physical courts. B. digitises and improves process but does not replace adjudication. C. decides cases algorithmically. D. replaces Article 226.

Answer: B.

Remedy: Treat technology as capacity infrastructure.

PYQS AND ANSWER PRACTICE

Verified/cross-owned Mains PYQs

PYQ 1 - UPSC GS-II 2024, Q2 - access-to-justice application

Verified neutral demand: Explain and distinguish Lok Adalats and Arbitration Tribunals, including whether they entertain civil and criminal matters. **10 marks | 150 words | Primary detailed owner: Lok Adalats/Administrative Tribunals; application here: subordinate justice**

Model answer

Claim: [FACT] Lok Adalat is a statutory settlement institution serving access to justice; arbitration is consensual private adjudication of arbitrable civil disputes.

Named evidence: The Legal Services Authorities Act, 1987 authorises Lok Adalats. They facilitate compromise, and an agreed award is final, binding and decree-like. Ordinary Lok Adalats cannot decide a contested case on merits if settlement fails. They may settle civil disputes and compoundable criminal offences, never non-compoundable offences.

Arbitration arises from an arbitration agreement under the Arbitration and Conciliation Act. The tribunal hears evidence and renders an arbitral award subject to limited statutory challenge. It handles arbitrable civil/commercial disputes, not

criminal prosecution.

Qualification: Permanent Lok Adalats for public-utility services have a distinct statutory conciliation-cum-adjudication role after failed settlement; they should not be equated with ordinary Lok Adalats.

Verdict: Both reduce ordinary-court burden, but Lok Adalat is access-oriented consensual justice, while arbitration is party-chosen adjudication.

Evidence chain: Article 39A -> Legal Services Authorities Act -> compromise/compoundable limit -> arbitration agreement -> civil-commercial field.

PYQ 2 - UPSC GS-II 2025, Q13 - appointments application

Verified neutral demand: Critically examine the collegium system of judicial appointments in India with comparison to the United States. **15 marks | 250 words | Primary owner: Polity 18; application here: High Court appointments**

Model answer

Claim: [FACT] India's collegium prioritises judicial independence through judicial primacy, while the United States uses presidential nomination and Senate confirmation, making political accountability more explicit.

Indian mechanism: Article 217 text provides presidential appointment after consultation with the CJI, Governor and High Court Chief Justice. The Judges Cases transformed consultation into collegium primacy. For High Court appointments, the originating Chief Justice consults two senior colleagues and the Supreme Court collegium of the CJI plus two senior-most judges considers the proposal. The NJAC was struck down in 2015.

Strengths: insulation from direct executive control, professional evaluation and protection of Basic Structure independence.

Weaknesses: opacity, limited published criteria, delays, uneven diversity and diffused responsibility.

US comparison: open nomination/confirmation increases public scrutiny but also permits ideological polarisation and partisan delay.

Reform: publish objective criteria and timelines, create a appointments secretariat, disclose reasoned outcomes consistent with privacy, broaden the candidate pool and make executive objections timely.

Verdict: India should reform, not politically capture, the collegium. Independence requires judicial primacy; legitimacy requires transparent, timely and diverse selection.

Evidence chain: Article 217 -> Judges Cases -> HC and SC collegium stages -> NJAC case -> US nomination-confirmation -> targeted reform.

Routed Prelims demands - provenance without invented answer letters

Prelims route 1 - 2019 GS-I Q81 - cross-owned

Verified neutral demand: High Court jurisdiction and Supreme Court review powers.

Doctrinal solution

- [FACT] Article 226 covers Fundamental Rights and other legal purposes.
- [FACT] Article 32 directly enforces Fundamental Rights.
- [FACT] Supreme Court appellate/review authority does not erase High Court constitutional jurisdiction.
- [FACT] *L. Chandra Kumar* protects Articles 226/227 review as Basic Structure.

Elimination rule: Reject any proposition that tribunalisation or Supreme Court appellate authority wholly excludes High Court review.

Prelims route 2 - 2021 GS-I Q88 - cross-owned

Verified neutral demand: Retired Supreme Court judges and High Court powers.

Doctrinal solution

- [FACT] Article 224A concerns retired High Court judges requested to sit in a High Court.
- [FACT] Article 128 separately concerns retired Supreme Court judges sitting in the Supreme Court.
- [FACT] A High Court's Article 226/227 powers remain institutionally distinct.

Elimination rule: Do not transfer Article 128 arrangements to Article 224A or treat a recalled retiree as a permanent judge.

Original solved Mains practice

M1. "Article 226 makes the High Court the everyday constitutional court." Analyse. (10 marks, 150 words)

Model answer

Claim: [FACT] Article 226 makes the High Court the locally accessible guardian of both Fundamental Rights and ordinary legal rights.

Named evidence: Unlike Article 32, it authorises writs for Fundamental Rights "and any other purpose." Article 226(2) connects jurisdiction to cause of action. *L. Chandra Kumar* protects Articles 226/227 review as Basic Structure and keeps tribunal decisions under High Court scrutiny.

Analysis: Citizens can challenge detention, jurisdictional error, public-duty failure and unlawful office without first converting every grievance into a Supreme Court case. Local access and broad purpose make the High Court the working constitutional court.

Qualification: [LIMIT] Relief is discretionary; adequate alternative remedies ordinarily matter, and territorial limits remain.

Verdict: Article 32 is the guaranteed national remedy for Fundamental Rights; Article 226 is the broader everyday rule-of-law jurisdiction.

M2. Compare Articles 32 and 226. (10 marks, 150 words)

Model answer

Claim: [FACT] Both enforce constitutional legality through writs, but they differ in nature, purpose, discretion and territorial reach.

Comparison: Article 32 is itself a Fundamental Right, lies in the Supreme Court and primarily enforces Fundamental Rights across India. Article 226 is a High Court power covering Fundamental Rights and other legal purposes, making it wider substantively. A High Court may apply the alternative-remedy rule, while Article 32 carries stronger remedial entitlement. Article 226 remains territorially linked, including cause-of-action jurisdiction.

Common control: *L. Chandra Kumar* places review under Articles 32 and 226/227 within Basic Structure.

Verdict: Article 32 guarantees the constitutional door; Article 226 places a wider door near the citizen. They are complementary, not hierarchical substitutes.

M3. Examine how Articles 227 and 235 secure the independence of the subordinate judiciary. (15 marks, 250 words)

Model answer

Claim: [FACT] Article 227 protects adjudicative legality through supervision, while Article 235 protects institutional independence through administrative control.

Mechanism: Article 227 gives High Courts judicial and administrative superintendence over territorial courts and tribunals, excluding Armed-Forces-law forums. It corrects grave jurisdictional and procedural failure without becoming a routine appeal. Article 235 vests posting, promotion, leave and disciplinary control over district and subordinate courts in the High Court.

Supporting design: Article 233 requires Governor-High Court consultation for district judges; Article 234 adds State PSC consultation for lower recruitment. Article 228 lets the High Court withdraw substantial constitutional-interpretation questions.

Analysis: Trial judges frequently decide cases involving State authorities. Executive control over their careers would threaten impartiality; High Court control separates administration from litigant government.

Qualification: Recruitment, finance and infrastructure remain shared with the State, while High Court control itself must follow law and natural justice.

Verdict: Articles 227 and 235 make the High Court the head, not merely the appellate apex, of an independent State judiciary.

M4. Critically examine the constitutional safeguards for High Court independence. (15 marks, 250 words)

Model answer

Claim: [FACT] High Court independence is secured through tenure, appointments, protected conditions, difficult removal, transfer consultation and un-excludable review.

Evidence: Article 217 provides presidential appointment with constitutional consultation and retirement at 62. Removal requires the Article 124(4)-type special-majority process. Article 221 protects conditions; Article 222 requires CJI consultation for transfer. Article 215 supplies court-of-record authority, while Articles 226/227 review is Basic Structure under *L. Chandra Kumar*. Article 235 protects control over lower courts.

Weaknesses: Collegium opacity, appointment delay, perceived punitive transfers, post-retirement incentives, vacancies and infrastructure gaps may weaken practical independence and public confidence.

Counterpoint: Full public disclosure may harm candidate privacy, and executive participation is legitimate in a constitutional appointment.

Reform: transparent criteria, appointment calendars, reasoned institutional dialogue, diversity, permanent secretariat and predictable infrastructure funding.

Verdict: The constitutional design is strong against direct control; delivery now depends on making appointments and administration timely, transparent and capacity-rich.

M5. Should India establish an All India Judicial Service? Discuss. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] AIJS can improve recruitment coordination and diversity, but only if it preserves the federal and High Court controls embedded in Articles 233-235.

Constitutional route: Article 312 requires a Rajya Sabha resolution supported by two-thirds present and voting, followed by parliamentary law. Article 312(3) excludes posts below district judge.

Case for: national talent pool, uniform standards, predictable recruitment, professional training, diversity and faster district-judge vacancies.

Case against: local language and State law are essential; centralisation may weaken High Court control and State reservation/service structures; a national examination cannot fix infrastructure, staff or retention.

Design safeguards: district-judge entry only, strong High Court role in selection/probation/control, State language testing, local-law training, federal consultation, reservation and transparent cadre allocation.

Current status: [CURRENT] No AIJS is operational as of 18 August 2026.

Verdict: AIJS is desirable as a cooperative recruitment framework, not a central takeover. Uniform entry must coexist with local competence and Article 235 control.

M6. Judicial pendency is a governance problem, not merely a judicial problem. Analyse. (15 marks, 250 words)

Model answer

Claim: [ANALYSIS] Pendency emerges from the entire justice chain: legislation, policing, prosecution, government litigation, judicial vacancies, procedure, infrastructure and citizen access.

Causes: delayed appointments, weak registries, repeated adjournments, service failures, frequent State appeals, complex statutes, forensic/prosecution gaps and uneven lower-court capacity.

Consequences: undertrial hardship, commercial uncertainty, weak rights enforcement, higher legal cost and pressure for tribunals or executive settlement.

Constitutional frame: Articles 226/227 and 235 give High Courts rights and system-management roles, but States fund infrastructure and participate in recruitment under Articles 233-234. Article 39A makes access a public obligation.

Reforms: fill posts through calendars, strengthen staff and service, use age-based docket management, responsible government litigation, mediation/legal aid, eCourts safeguards and process simplification.

Qualification: [LIMIT] Disposal targets must not reward hurried justice or compromise independence.

Verdict: Courts must manage cases, but governments must stop creating avoidable litigation and fund the institutions that constitutional remedies require.

M7. Evaluate eCourts Phase III as an access-to-justice reform. (20 marks, 250 words)

Model answer

Claim: [CURRENT] eCourts Phase III is a major justice-infrastructure programme, not a replacement for judges or adjudication.

Design: Approved for 2023-2027 with Rs 7,210 crore, it seeks record digitisation, e-filing, e-payment, paperless workflows, e-Sewa Kendras, interoperable data and intelligent case management.

Benefits: reduces travel and filing cost, improves record retrieval, supports hybrid hearings, tracks case age, enables transparent listing and aids administrators in finding bottlenecks. District litigants and lawyers may gain most where physical distance is large.

Risks: digital divide, inaccessible interfaces, language exclusion, cyberattacks, privacy leakage, poor scanning quality, unreliable connectivity and algorithmic scheduling without reasons.

Safeguards: assisted access through e-Sewa Kendras, open standards, local languages, cyber audits, data minimisation, human control over listing/merits, physical alternatives and user training.

Qualification: [LIMIT] Faster digital movement cannot cure vacancies, weak legal aid or poor investigation.

Verdict: Phase III can convert courts from paper-bound institutions into accessible public infrastructure only if digital-by-default never becomes digital-only.

M8. "High Courts combine constitutional adjudication with judicial administration." Evaluate the strengths and strains of this dual role. (20 marks, 250 words)

Model answer

Claim: [FACT] High Courts protect rights under Article 226 while supervising and administering the lower judiciary through Articles 227 and 235.

Strengths: The same constitutional court can identify systemic illegality, correct subordinate forums, ensure uniform precedent, control judicial careers and withdraw constitutional questions under Article 228. Integration protects district judges from the executive and connects administration to adjudicative standards.

Strains: Writ caseload, civil/criminal appeals, vacancies, registry management and disciplinary administration compete for time. Excessive Article 227 intervention may become a second appeal; weak administration can delay rights cases. Centralised High Court control may also overlook district-level management needs.

Reform: professional court administration, delegated registry authority with judicial oversight, data-based case flow without disposal quotas, regular inspections, district leadership training, timely appointments and separate administrative time.

Qualification: [LIMIT] Administrative professionalisation must not transfer decisional control to the executive or opaque technology vendors.

Verdict: The dual role is constitutionally valuable because it unifies rights and independence; it needs specialised management capacity so administration supports rather than consumes adjudication.